Bounded Participation and Regime Legitimation: Public Consultation in Authoritarian Constitution-Making

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Abstract

Why do authoritarian regimes consult the public during the process of constitution-making? Since the start of the twentieth century, numerous autocracies have organized national consultations in which they solicited public input in advance of the promulgation of a new constitutional text. Yet this nominally democratic institution has gone largely unexplored in comparative authoritarianism despite the field's recent institutional turn. I construct an original data set of all public consultations in constitution-making since 1789 to identify the scope conditions that drive authoritarian regimes to solicit and collect citizens' constitutional preferences in this way. I argue that autocracies organize constitutional consultations when they confront a legitimacy deficit. The failure to achieve key performance-based outcomes exacerbates the underlying democratic-procedural disconnect between citizen preferences and elite decision-making under autocratic rule. Public consultation in constitution-making thus serves to build a base of popular support through two key mechanisms: information acquisition and information distribution. The former allows elite leadership to identify and control sources of popular discontent. The latter enables them to campaign and distribute propaganda about plans for reform and the supposedly participatory origins of the regime. Public consultation in constitution-making thus can be construed as an effort to manufacture an image of autocratic rule that is responsive to the will of the people as well as founded on it.

Table of Contents

Introduction 2
Theory 4
Authoritarian Legitimacy 4
Public Consultation in Constitution-Making 5
When Do Regimes Consult the Public? 8
Which Regimes Consult the Public? 11
Research Design 14
Data 14
Sample 15
Dependent Variable 16
Independent Variables 17
Statistical Model 19
Conclusion 20

Introduction

When drafting constitutions, even authoritarian regimes evidently want to hear from their citizens. Why? Numerous autocracies have held national consultations in which they solicited public input in advance of the promulgation of a new constitution. Public consultation in authoritarian constitution-making has assumed a myriad of forms; regimes have called for public comments and constitutional proposals, conducted educational campaigns, and organized roundtables with social and political groups, among other strategies. The universe of cases includes regimes as diverse as the Soviet Union in 1936 on the eve of Stalin's "Great Purge"; Egypt in 1971 as President Sadat pursued economic liberalization; and Cuba in 2018 as post-Castro leadership moved toward depersonalization. Each of these regimes, however, adopted public consultation in constitution-making, suggesting this nominally democratic institution served somehow to bolster their legitimacy.

Using an original data set, I identify the scope conditions that drive authoritarian regimes to engage in consultations in constitution-making. I also infer the mechanisms by which autocrats embrace these consultations in hopes of staying in power. I argue that authoritarian regimes adopt the institution of public consultation in constitution-making when experiencing a legitimacy deficit. I define this concept along two dimensions—one democratic-procedural and the other performance-based. The first is intrinsic to autocracies, as secrecy and unaccountability are commonplace among elite leaders (Barker 2001). The second results from a regime's poor performance on social and economic outcomes (Gerschewski 2013; Levi, Sacks, and Tyler 2009). Public consultation assuages the tension bred by the intersection of these deficiencies.

Citizens are granted space to voice their grievances under the pretense of procedural fairness. Regimes in turn seek to protect themselves through two key mechanisms: information

acquisition and information distribution. First, gathering constitutional preferences through consultation allows elite leadership to identify and control sources of discontent. Other pseudo-democratic institutions are adopted to this end (Brancati 2014; Gandhi 2008; Miller 2015). Scholars argue, however, that law and legal institutions are distinct; they are often adopted specifically to achieve regime legitimation (Svolik 2012; Whiting 2017). Second, consulting the public serves as a mobilization campaign in which leadership can convey their programmatic commitments, to the benefit of performance claims, and profess the democratic origins of the regime, in service of power concentration. Public consultation in constitution-making hence is used to construct an image of autocratic rule that is not only responsive to citizen demands, but founded on the will of the people.

I make a contribution to the "institutional turn" in comparative authoritarianism (Pepinsky 2014). Scholars have studied why authoritarian regimes accept nominally democratic institutions, but they have focused largely on hegemonic political parties, legislatures, and elections (Brancati 2014; Gandhi and Lust-Okar 2009). The origins and effects of legal institutions, such as those related to constitution-making, have received less scrutiny. This is a particularly important line of inquiry because citizens' right to participate more deeply in constitutional design has emerged as an international norm (Eisenstadt, Levan, and Maboudi 2015), perhaps even among authoritarian regimes. Yet it is unclear why authoritarian regimes choose to organize large consultations when writing a constitution. On its face, this endeavor seems to be a needless gamble with little benefit.

The field of comparative public law offers limited insight. Scholars have largely explored the functions of autocratic constitutions (Ginsburg and Simpser 2013), not their process of design, with some exceptions (Barros 2002; Negretto 2014; Stilt 2014). I speak to the issue of distinguishing between the impetus for adopting pseudo-democratic institutions from the effect those institutions generate (Brancati 2014). Amid a global trend of democratic backsliding

(Bermeo 2016; Haggard and Kaufman 2021), it is critical for researchers and reformers to understand why and how autocracies use bounded participation in constitutional design to legitimate their authority.

Theory

Authoritarian Legitimacy

Largely absent from the third wave of comparative authoritarianism research, which heralded the "institutionalist turn" (Pepinsky 2014), are references to legitimacy (or legitimation). Most recent research instead emphasizes the role that nominally democratic institutions play in balancing elite cohesion and repression (Dukalskis and Gerschewski 2017). Scholars have examined a familiar set of institutions to analyze this dynamic, including elections (Gandhi 2008; Gandhi and Lust-Okar 2009), legislatures (Wright 2008), and media (Stockmann and Gallagher 2011). Law and legal institutions, which speak directly to authoritarian legitimacy, have received less scrutiny. A nascent body of work, however, advocates for re-incorporating legitimacy and legitimation into the study of autocracies and their stability (Gerschewski 2013; Kailitz 2013; Kailitz and Stockemer 2017). This literature contests the assumption that authoritarian regimes do not rely on popular support (Przeworski 1991). Indeed the purpose of this research is to examine how autocratic regimes[1] build bases of popular support, or, in other words, justify their grip on power.

The study of authoritarian legitimation is founded on the concept of legitimacy as defined empirically by Weber (1922 [1978]). Legitimation is thus the process by which a ruler gains support from citizens; claims of a right to rule are matched by the "legitimacy belief" of the ruled. Legitimation seeks to engender "active consent, compliance with the rules, passive obedience, or

[1] I employ Fishman's (1990, 428) definition of a "regime" as the "formal and informal organization of the center of political power, and of its relations to the broader society."

mere toleration within the population" (Gerschewski 2013, 18). Autocrats cannot depend only on brutal repression to maintain their power; they must find ways to please citizens (Svolik 2012). Leaders instrumentalize nominally democratic institutions to construct controlled channels (and an image) of responsiveness to the will of the people. This is what Dukalskis and Gerschewski (2017) call the "democratic-procedural" mechanism of autocratic legitimation; autocrats persuade citizens that their voices have been heard and democratic procedures, for the most part, respected. Under the pretense of democratic norms, autocratic regimes use institutions to promote an image, however true to reality, of authority that is responsive and ergo legitimate in the eyes of the ruled.

This argument has a clear analog in the field of comparative public law. It is hypothesized that authoritarian regimes embrace law and legal institutions as a strategy of regime legitimation (Ginsburg and Moustafa 2008; Massoud 2013; Whiting 2017). Specifically, national constitutions are considered a necessary step toward strengthening regime legitimacy among domestic constituencies (Law and Versteeg 2014; Rutherford 2008; Turner 1990). But a standard question about autocratic constitutions persists: "How can a sham document generate any legitimacy?" (Ginsburg and Simpser 2013, 1). I contend that we must examine the process of design. It is often argued that participatory design procedures produce constitutions with higher levels of legitimacy and popular support, but this claim has received limited cross-national study in either democratic or authoritarian contexts (Ginsburg, Elkins, and Blount 2009). Imbuing constitution-making with participatory procedures such as consultation allows autocrats to install rule of law as a new legitimating foundation of the regime, which some argue is a central determinant of legitimacy (Tyler 2001).

Public Consultation in Constitution-Making

Public consultation in constitution-making has gone largely unexplored even as scholars have recognized the functions of autocratic constitutions (see Ginsburg and Simpser 2013). These charters cement new distributions of power by building goodwill between the dictator and his "launching coalition" (Albertus and Menaldo 2012). They are also focal points for holding autocrats accountable to power-sharing commitments (Meng 2020). But it is unclear how leaders garner popular support for a new constitution that enshrines authoritarian rule (if not on paper then in practice). I argue that public consultation during the process of constitution-making is adopted by autocrats to strengthen regime legitimacy[2] via two mechanisms: information acquisition and information distribution. Citizens air their constitutional preferences through procedures of bounded participation. The regime in turn collects information needed to construct a constitutional order that addresses, at least on paper, the sources of societal discontent. Elite leadership also has a chance to distribute information about (and campaign for) the regime's future plans, reinforcing performance claims.

When autocratic regimes design constitutions, public consultation addresses the "dictator's dilemma" (Wintrobe 1998). That is, elite leaders do not know how much support they have among the general population, and citizens have an incentive to conceal their true preferences for fear of repression. By consulting the public (and reducing the risk of repression), regimes have an opportunity to gather information on mass constitutional preferences and sentiments toward the regime. Public consultation is thus similar to other nominally democratic institutions used to

[2] I treat constitutional legitimacy and regime legitimacy as interchangeable. Fallon (2005) argues that constitutional legitimacy is shaped mostly by its sociological dimension. Sociological legitimacy is defined in terms nearly identical to Weber—when the general public regards the constitutional regime as "justified, appropriate, or otherwise deserving of support for reasons beyond fear of sanctions or mere hope for personal reward" (Fallon 2005, 1795). Legal legitimacy (i.e., legality of the constitution's ratification) and moral legitimacy (i.e., acceptance of the constitution as reasonably just) depend largely on sociological acceptance. When considering the legitimacy of the constitution, the legitimacy of the regime itself is inextricably connected.

identify and control sources of popular discontent (Brancati 2014). Elections and legislatures provide for information acquisition in a similar way, allowing regimes to calibrate policy concessions to opposition and preempt protest (Gandhi 2008; Gandhi and Przeworski 2007; Miller 2015). A key distinction, however, is that consultation allows individual citizens and civic groups to make demands of the government directly, rather than through indirect representation. Public consultation can produce highly specific information about the sources opposition, especially if a high level of participation is achieved, without citizen demands being construed as acts of resistance to the regime.

Public consultation in constitution-making also serves another end that is underexplored in extant research: information distribution. Constitutions are often drafted during periods of major political transition, and public consultation may allow authoritarian regimes to distribute important information regarding current performance and future reforms. This mechanism has received some scrutiny in case-based research on constitutional design in former socialist countries (Getty 1991; Peselj 1963; Skilling 1962). But the purpose that institutions play in disseminating information, or propaganda, remains part of the "puzzle" of autocratic legitimacy (Nathan 2020). Edmond (2013) posits that autocrats use propaganda to send deceiving messages about the regime's strength and impede coordination among citizens who wish to depose the ruler. In contrast, I assume that information manipulation serves legitimation, especially under the guise of democratic norms. Public consultation allows leaders to highlight new programmatic commitments within the constitution, in support of their performance claims, as well as the supposedly participatory character of their regime, in support of their claims of democratic-procedural fairness. Therefore, public consultation in constitution-making is a two-way flow of ideas: from citizens to leadership (information acquisition); and from leadership to citizens (information distribution).

My arguments are, in part, based on what extant research has uncovered about the use of public consultation by authoritarian regimes in ordinary (rather than constitutional) politics. For example, a China-focused literature investigates how the Chinese Communist Party (CCP) uses deliberative mechanisms at the local level to acquire information and improve governance (He and Warren 2011). Scholars emphasize that the CCP, and other authoritarian regimes, wish to demonstrate that they are responsive to citizen demands, or at least create an image of responsiveness (Chen, Pan, and Xu 2016).

These consultations are considered a form of "authoritarian deliberation" (He 2006; He and Warren 2011). This concept is based on the premise that high levels of deliberation, with sound procedures and rigorous collective analysis, are achievable not only in democracies but in autocracies, too. I extend this concept to public consultation in constitution-making given the functional similarities between authoritarian deliberation in ordinary and constitutional politics. The key difference is that public consultation in constitution-making represents an even deeper effort by authoritarian regimes to demonstrate they are not only responsive to, but *founded on* the will of the people. Constitutions constitute the political community (Jacobsohn 2010), and public consultation in constitution-making allows authoritarian regimes to bend the will of the people toward their goals. They fashion an image of procedurally legitimate authority while they retain unilateral control over the interpretation and incorporation of citizens' constitutional preferences into the text.

When Do Regimes Consult the Public?

If authoritarian regimes use public consultation to generate legitimacy, it follows that they adopt this institution when facing a legitimacy deficit at the time of constitution-making. I define a legitimacy deficit in Weberian terms—a disparity between the legitimacy claims of the ruler and

the legitimacy beliefs of the ruled (Weber 1922 [1978]). In other words, regime rules are "only weakly supported by societal beliefs, or are deeply contested" (Beetham 2012, 111). In this sense, legitimacy deficits can be driven by a wide range of forces. I focus on two interrelated categories—one performance-based and the other democratic-procedural.

First, a legitimacy deficit may result when an authoritarian regime fails to satisfy citizens' demands. This argument stems from Easton's (1979, 268) concept of "specific support," defined as "quid pro quo for the fulfillment of demands." In other words, citizens question the regime's authority when it is persistently unable to realize the basic purposes of governance. These expected outputs include acceptable performance on key social and economic outcomes (Levi, Sacks, and Tyler 2009). Material and physical security are particularly important (Gerschewski 2013; Perry 2008; von Soest and Grauvogel 2017). Related outcomes include equitable redistribution of public goods such as healthcare and education (von Soest and Grauvogel 2016) as well as the maintenance of internal order and territorial sovereignty following a civil war (Radnitz 2014). Importantly, the legitimacy of autocratic regimes is more performance-based than is often assumed (Gerschewski 2013). In the face of such performance issues, authoritarian regimes may pursue a strategy of appeasement in lieu of repression (Acemoglu and Robinson 2005) that includes a constitutional component.[3] The adoption of public consultation in constitution-making thus represents an effort to create an institutional space where citizens can articulate their grievances to the regime in the face of worsening socioeconomic conditions.

[3] It is important to note that I do not seek to explain when authoritarian regimes choose to engage in constitution-making. Other scholars have examined this question (Albertus and Menaldo 2012). Rather, I take the decision of autocratic leadership to draft a new constitution at face value and focus on when they choose to utilize public consultation during constitution-making as part of their strategy of domestic appeasement.

Second, a legitimacy deficit may result when an authoritarian regime depends on rules and procedures that no longer successfully shape expectations about the alleged linkage between citizens' preferences and elite decision-making. Evolving citizen beliefs lead to a withdrawal of support for extant institutional arrangements (Beetham 2012), in particular those that govern bottom-up relations between regime leadership and society. In some sense, this kind of legitimacy deficit is inherent to authoritarian regimes, as the merger of highly concentrated power, secrecy, and unaccountability makes sustaining democratic-procedural legitimacy a precarious enterprise (Barker 2001). Operating in an environment of uncertainty leads autocrats to focus on intra-elite power arrangements at the expense of public-facing legitimacy. Some have even argued that authoritarian regimes are "structurally disadvantaged" to claim procedural legitimacy (Croissant and Wurster 2013, 7). Yet the adoption of nominally democratic institutions suggests an effort by leadership to abide by procedures and norms that seemingly respect the will of the people (Dukalskis and Gerschewski 2017; Schedler 2006). Indeed "competitive" and "electoral" authoritarianism are now perhaps the most common types of non-democratic regimes across the globe (Levitsky and Way 2010; Schedler 2006).

I contend that the performance-based and procedural dimensions of a legitimacy deficit are closely connected. Beetham (2012, 111) notes that legitimacy deficits "usually only become critical when some performance failure of government exposes a fundamental doubt about its rightful source of authority." This crisis is most likely to emerge when deficits of performance-based and democratic-procedural legitimacy intersect. The failure to satisfy the social contract coupled with the absence of channels for citizens' demands and responses to major change leads to a dual legitimacy shortfall, which may undermine regime stability. In short, the greater the legitimacy deficit, the greater the need for participatory mechanisms such as public consultation to substitute for actual consent in constitution-making.

Public consultation during constitution-making offers an opportunity for authoritarian regimes to construct an image of responsiveness, and legitimate authority, based on professed respect for citizen constitutional preferences and minimally fair participatory procedures. Regime leaders can use the information gathered through this nominally democratic institution to make claims of achievements, even in the absence of real changes (Dimitrov 2009), as well as declare the supposedly popular origins of the constitutional regime. The deployment of rule of law to bolster regime legitimacy has been studied extensively in China (Diamant, Lubman, and O'Brien 2005; Fu 2010; Gallagher 2006) and other authoritarian contexts (Ginsburg and Moustafa 2008; Pruzan-Jørgensen 2010; Massoud 2013). Furthermore, scholars widely recognize the key role that constitutions play in coordinating sociopolitical behavior and generating clear expectations for the public in ordinary politics (Hardin 2013; Przeworski 1991; Weingast 1997). By extension, I argue that the process of constitution-making under authoritarian regimes, specifically the adoption of public consultation, is an important part of shaping citizens beliefs in ways that reduce prevailing legitimacy deficits.

Which Regimes Consult the Public?

Bearing in mind why and when authoritarian regimes adopt public consultation in constitutional design, it is also important to consider what type of authoritarian regime this particular institutional arrangement may serve best. I argue that civilian dictatorships are most likely to embrace public consultation during constitution-making when facing a crisis of performance and democratic-procedural fairness. I define this regime type in minimalist terms, employing a slightly modified version of the conceptualization offered by Cheibub, Gandhi, and Vreeland (2010). All regimes that are not military (i.e., led by military officers under the use, or threat, of force) or monarchies (i.e., led by descended royalty according to the rightfulness of tradition) are considered civilian.

Their category of civilian regimes does not make any distinctions (or assumptions) about the underlying institutions as others do (Geddes 1999; Wahman, Teorell, and Hadenius 2013). However, I heed the critique of Wahman, Teorell, and Hadenius (2013) that we should not classify regimes as military dictatorships merely by having a former member of the armed forces as their head of state.

There are structural reasons to expect that civilian dictatorships have greater incentive than other regimes to appease domestic constituencies by adopting pseudo-democratic institutions such as public consultation during constitution-making. Above all, civilian dictatorships are more likely to depend on public support, i.e., legitimacy, to achieve stability because they cannot rely on military force or honored tradition to the same extent as other regime types (Law and Versteeg 2014). The viability of repression is inversely related to the level of popular support that a regime needs to stay in power (Bueno de Mesquita et al. 2003). Therefore, civilian dictatorships must cultivate legitimacy by making pledges to improve socioeconomic outcomes. These regimes have an incentive to match these efforts with institutions such as public consultation that seem to provide for a stronger connection between citizens' preferences and elite decision-making. Public consultation in constitution-making thus is an alluring strategy for appeasement and coordination, especially in the absence of other coordinating mechanisms such as family relations and military ranking (Law and Versteeg 2014). Powerholders in civilian dictatorships can use public consultation to address the sources of societal discontent at a constitutional level and organize mobilization in a way that coordinates the social and political behavior of the public in the post-constituent period.

There is some case-based evidence to support my arguments. Son and Nicholson (2017) demonstrate that the communist regime of Vietnam used public consultation and deliberation during the 2012-2013 constitution-making process to revive their legitimacy in the face of

corruption, economic stagnation, and demands for political liberalization. The Cuban regime chose to embrace public consultation under similar circumstances during the drafting of the 2019 constitution. Another salient factor in this case, however, was leadership change, suggesting changes to the distribution of elite decision-making power in Cuba (Bui 2020). The constitution-making process was part of the gradual transfer of power from the generation of the Cuban Revolution to a new cohort of post-Castro communist leaders who do not benefit from the same personalist influence. These two cases suggest that as struggles of socioeconomic performance intersect with elapsing rules and procedures connecting leadership and society, public consultation during constitution-making may prove an appealing strategy to reduce the legitimacy deficit.

The foregoing theory and arguments along with the predictions that they generate for authoritarian regimes can be summarized as follows:

H_1: *The legitimacy deficit hypothesis*. – Authoritarian regimes adopt public consultation during constitution-making in response to weakening popular support due to poor socioeconomic performance and democratic-procedural deficiencies. Civilian dictatorships, being unable to depend on raw force or the sanctity of historical custom, must find ways to appease domestic constituencies as well as construct a constitutional order that produces clear expectations for the relationship between regime leadership and society at large. This confluence of factors therefore suggests that struggling civilian regimes are more likely than monarchies or military regimes to embrace public consultation in constitutional design.

Research Design

Data

For this paper, I construct a new global dataset. The Public Consultations in Constitution-Making Database (PCCD) records public consultations that occurred during the drafting of national constitutions promulgated since 1789. I define a "public consultation" as the following:

> The formal solicitation of input from the general public (groups and/or individuals) by a country's standing regime—either before the completion of a draft text, after the release of a draft, or at both the pre- and post-draft stages.

This definition is deliberately broad to account for the wide range of public consultation strategies and mechanisms (e.g., direct submissions, survey, hearings, etc.). It is also based in part on the definition of consultation used by Widner (2007). I, however, specify that the standing regime (regardless of regime type) is the entity formally requesting input from the public, and the solicitation of "public input" establishes that the consultation generates information that may (or may not) be used by drafters. A consultation may include one or more strategies for soliciting public views and constitutional preferences; duration also varies. I count mechanisms or stages as part of the same public consultation so long as they are related to the same discrete constitution-making process started by the standing regime.

In the base version of the data set, each observation is a new constitution from some independent state with a corresponding year when the text entered into force. I include only new and interim national constitutions; I exclude any other constitutional event (e.g., amendments, reenactments, suspensions, etc.). This is done to record only those founding texts that inaugurate a new constitutional system—the period during which a constitution is in force before it is replaced or suspended. New and interim constitutions are identified using the "Chronology of Constitutional

Events" data set created by Elkins, Ginsburg, and Melton (2009 [2020]). Each of the 890 observations is coded on a wide variety of variables regarding the timing, mechanisms, and miscellaneous aspects of the consultation.[4]

I extend this data in a few ways to enable proper statistical analysis. First, I transform the data from cross-sectional to panel data. This is done by merging the PCCD with the "Chronology of Constitutional Events" data set (Elkins, Ginsburg, and Melton 2009). The constitutional events excluded in the base version of the PCCD are included here only to situate the inauguration of a new constitutional system, temporally speaking. More importantly, the transformation of my data in this way allows me to incorporate other time-series data related to the independent variables of interest I discuss below. Thus, I treat my dependent variable (public consultation) as time-invariant, but I gather macro-level observational data (e.g., GDP growth, inflation, etc.) that vary across country-year. Second, I have also extracted variables from the data set created by Elkins, Ginsburg, and Melton (2014) on autocratic constitutions and the data set by Cheibub, Gandhi, and Vreeland (2010) on democracy and dictatorship. I discuss the use of these variables below.

Sample

It is important to note that my data includes the constitutions of all independent states from 1789 to 2021, regardless of whether they were created by democratic or non-democratic regimes. Given that my theory is focused on authoritarian regimes, I subset the data to include only authoritarian constitutions. Elkins, Ginsburg, and Melton (2014, 145) define an authoritarian constitution as "one that was promulgated in a year in which its country was coded as authoritarian." In other

[4] As of December 2022, I have coded 105 of the 890 cases, and 52 constitutions were designed via processes that included some form of public consultation.

words, they define the concept in minimalist terms, according to regime type in the year that a new constitutional system was adopted.[5]

Regime type, as the root concept, is treated as a binary and measured using the Unified Democracy Scores created by Pemstein, Meserve, and Melton (2010). Similar to Elkins, Ginsburg, and Melton (2014), I focus on the constitutional system's inaugural draft (and ignore amendments and changing interpretations during the post-constituent period) in order to match the text with its original authors. In contrast, however, I use the binary conceptualization of democracy offered by Cheibub, Gandhi, and Vreeland (2010), as their regime classification system informs my arguments. The binary variable used by Elkins, Ginsburg, and Melton (2014) to indicate an authoritarian constitution is included in my data as a refence point. I identify cases where there is a discrepancy between those constitutions classified authoritarian (or not) and those years in which the standing regime was labeled as democratic (or not) by Cheibub, Gandhi, and Vreeland 2010). I resolve these cases accordingly to ensure that I identify authoritarian constitutions in a manner that is consistent with my conceptualization of democracy as the root concept.

Dependent Variable

My outcome of interest is whether or not an authoritarian regime chooses to adopt public consultation in the process of constitution-making. My main dependent variable is thus binary: (1)

[5] A number of conceptual challenges accompany the minimalist approach to conceptualizing an authoritarian constitution. Perhaps most important is the question of timing. Defining an authoritarian constitution by regime type in the year of adoption may be questionable; a snapshot of specific constitutional moment may not be representative of the course of autocratic behavior prior to (or after) the promulgation of the new constitution. There are also serious questions related to the conceptualization and measurement of the root concepts behind regime type: democracy and authoritarianism. A binary measure of democracy such as the one used by Elkins, Ginsburg, and Melton 2014) may be reasonable based on the need to fix root and derivative concepts in time. However, there is evidence to suggest that graded measures of democracy outperform dichotomous measures in terms of construct validity and reliability (Elkins 2000). The conceptualization of "authoritarian constitution" is something I will continue to consider in future work.

yes, a public consultation was held during the course of constitution-making; or (0) no, a public consultation was not held. This outcome is recorded by the "consult" variable in my data set, and it is agnostic as to the specific mechanisms used during the consultation. This variable is also based on the definition of public consultation during constitution-making presented above. I also plan to run an analysis in which my dependent variable is the total number of days elapsed over the course of a consultation ("duration_tot"). I utilize this as a dependent variable of secondary interest because, in contrast with the broader "consult" variable, there is much greater likelihood of missing data.

Independent Variables

The legitimacy deficit is the most important concept to my argument. The major challenge here is choosing apposite proxies to measure the concept indirectly—ones which conform to my theory. Measuring legitimacy empirically presents a number of challenges (Gilley 2006; Hechter 2009). Perhaps the most central issue is the level at which to measure legitimacy. Here, because my unit of analysis is country-year (for the corresponding constitution) and I am interested in the conditions that lead to public consultation, I employ macroscopic measures of legitimacy.

First, I select performance-based indicators. The worse the regime performs socially and economically, the wider the legitimacy deficit is. I look to Gerschewski (2013) for specific country-level performance indicators that capture the socioeconomic conditions underlying legitimacy. The World Bank Development Indicators designed to measure socioeconomic growth and decline are most useful here. I plan to include the following in my statistical model: (1) Gross Domestic Product (GDP) growth rates; (2) inflation rates; (3) the GINI index for social inequality; (4) social, health, and educational expenditures; (5) and (6) the overall Human Development Index

(HDI). I also need to account for the temporal variation that a legitimacy deficit implies.[6] One concern with my model (and the use of substitutive indicators) is the aggregation problem—that is, "weighing more heavily those indicators that seem to 'clump' together" (Gilley 2006, 504). To ensure my measures are not redundant, I plan to conduct reliability tests. I will perform a factor analysis as well as assess inter-item correlation among the socioeconomic indicators that I choose.

Second, I select indicators for the democratic-procedural legitimacy deficit. The logic here is that a specific type of authoritarian regime, civilian dictatorships, experience greater pressure to conform to democratic and fair procedures. These regimes face an acute pressure to adopt the nominally democratic institution of public consultation in constitution-making when the underlying democratic deficit is coupled with performance-based issues. Because I use the conceptualization of democracy created by Cheibub, Gandhi, and Vreeland (2010), I also adopt their regime classification system for authoritarian regimes. They include three categories: civilian dictatorship; military dictatorship; and royal dictatorship (monarchy). I plan to recode as civilian regimes, however, those cases in which the head of state is an ex-military member, but military officers are not the dominant regime actors (Wahman, Teorell, and Hadenius 2013). I also plan to assess the role of ideology, provided I find a reliable indicator at the regime level.[7]

Finally, I incorporate several control variables from the literature on nominally democratic institutions in authoritarian regimes. I draw the first group of controls from Wright (2008). These

[6] One possibility is to calculate increases and decreases on these indicators for a period of five years prior to the ratification of the constitution.

[7] Currently, my theory does not account for the ideology of the authoritarian regime. Measures of ideology exist, but usually these are calculated at the individual level or the political party level (Pickering and Rockey 2011). Thus, it is unclear how ideology at the regime level should be measured, especially in authoritarian contexts where micro-level data is often scarce. One option is to code authoritarian regime ideology according to the left- or right-wing variant professed by the key leader. This, however, raises the thorny question of how to handle regimes that are not explicitly ideological in nature.

include: (1) ethnic fractionalization, as ethnic conflict may increase demand for conciliatory civil institutions; (2) a dummy variable for the Cold War period, as authoritarian regimes now face more international pressure to follow democratic norms; (3) regime age, as the probability of institutionalization may be time dependent (Beck, Katz, and Tucker 1998); and (4) former colonial status, as political institutions are often inherited (Porta et al. 1998). Additionally, I use the National Material Capabilities data set (v6.0) to control for six indicators—military expenditure, military personnel, energy consumption, iron and steel production, urban population, and total population—related to the power of the country at the time of constitution-making. Finally, I include an ordinal variable from the Varieties of Democracy data set (v11.1) for domestic autonomy (i.e., non-autonomous, semi-autonomous, autonomous), which indicates whether a state is independent from the control of other states with respect to domestic policy (Coppedge et al. 2021). This variable controls for the adoption of political institutions as a result of international dependence.

Statistical Model

I estimate a binary logit model that predicts whether or not an authoritarian regime adopts public consultation in constitution-making. First, my sample size (N = 890) is large enough to avoid the issues of estimating logit models with small samples (Rainey and McCaskey 2021). Second, logistic regression is sensitive to multi-collinearity. I need to ensure that my explanatory variables are not highly correlated. Finally, logit assumes that observations are independent, which is violated by having repeated observations (i.e., new constitutions) on the same units (i.e., countries).

Thus, I plan to address the issue of time dependence by using the binary time-series-cross-section (BTSCS) data method developed by Beck, Katz, and Tucker (1998). They note that BTSCS

observations are likely to be temporally dependent, or a type of disaggregated event history data. As a result, ordinary logit or probit models are inadequate, as these techniques assume temporal independence. One solution is to include temporal dummy variables, κ_{t-t0}, but this may lead to inefficiency and separation issues if we are uncertain about the number of κ periods. Their second solution is the use of splines as a smoothing function for $t - t0$, which is not harmful to coefficient estimates. As Carter and Signorino (2010) observe, there is a wide range of splines to choose from such as the natural cubic spline used by Beck, Katz, and Tucker (1998). It is most important to choose splines that have appropriate parameter settings (e.g., knot placement) in order to avoid biased conclusions about the hazard. The general logit equation can be expressed as follows:

$$\Pr(y_i = 1|x_i, t) = \frac{1}{1 + \exp\left[-x_i\beta + s(t_i)\right]}$$

where y_i is the probability an authoritarian regime adopts public consultation in constitution-making; x_i is the set of regressors; and the function $s(t_i)$ takes on the form of the corresponding spline.

Conclusion

Why do authoritarian regimes consult the public during the process of constitution-making? I seek to identify the circumstances under which autocracies choose to institutionalize in this way. Public consultation has gone largely unnoticed by scholars of comparative authoritarianism. I incorporate this nominally democratic institutions into the "institutionalist turn" in the field (Pepinsky 2014). More specifically, I explain why authoritarian regimes organize large-scale consultations during constitutional design—a political and logistical responsibility of seemingly Herculean proportions.

I construct an original data set to identify the macroscopic forces that drive authoritarian regimes to embrace public consultation in constitution-making. I argue that these regimes do so

when they face a legitimacy deficit on performance-based and democratic-procedural grounds. It is the former that aggravates the underlying tension between citizen preferences and elite decision-making in autocracies. Public consultation thus serves to build a base of popular support through two specific mechanisms: information acquisition and information distribution. The former allows authoritarian regimes to identify and control sources of discontent. The latter enables them to campaign and distribute propaganda about their plans for structural reform and the participatory foundation of their regime. Public consultation in constitution-making thus can be construed as an attempt to manufacture an image of autocratic rule that is responsive to the will of the people as well as founded on it.

Ultimately, explaining why some authoritarian regimes choose to adopt public consultation in constitution-making is an important enterprise on several fronts. Empirically, I map the adoption of this institution across the globe, recording valuable information about the specific procedures used by authoritarian regimes during constitution-making. Theoretically, I discern the macroscopic conditions that drive authoritarian regimes to adopt public consultation as well as infer the purpose that it serves in terms of information acquisition and distribution. Normatively, amid growing concerns about democratic backsliding on a global scale (Bermeo 2016; Haggard and Kaufman 2021), it is crucial that we understand how authoritarian regimes use pseudo-democratic institutions such as public consultation to bolster their legitimacy. This line of inquiry has the power to reveal how features of democracy are deconstructed and innovatively deployed to sustain autocratic survival.

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